

Form 15-109
(Subrule 15-109(2))

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

APPLICANT _____

RESPONDENT _____

REPODENT HIS MAJESTY THE KING IN RIGHT OF THE
SASKATCHEWAN,
FAMILY JUSTICE SERVICES BRANCH

NOTICE OF APPLICATION

(Application to set aside registration of a foreign support order pursuant to
section 19(2) of *The Inter-jurisdictional Support Orders Act*)

NOTICE TO RESPONDENT

This application is made against you. You are a respondent.

You have the right to state your side of this matter before the Court. To do so, you must be in Court when the application is heard as shown below:

Where _____

Date _____

Time _____

Remedy Sought

Pursuant to subsection 19(2) of *The Inter-jurisdictional Support Orders Act*, the applicant asks the Court to set aside the registration of the foreign support order that was registered by the Designated Authority, pursuant to section 17(2) of *The Inter-jurisdictional Support Orders Act* or section 19.1 of the *Divorce Act* (Canada).

Grounds for Claim

- ☐ Pursuant to subclause 19(3)(b)(i) of *The Inter-jurisdictional Support Orders Act*, in the proceeding in which the foreign order was made, a party to the order did not have proper notice or a reasonable opportunity to be heard.
- ☐ Pursuant to subclause 19(3)(b)(ii) of *The Inter-jurisdictional Support Orders Act*, the foreign order is contrary to the public policy of Saskatchewan.
- ☐ Pursuant to subclause 19(3)(b)(iii) of *The Inter-jurisdictional Support Orders Act*, the court that made the foreign order did not have jurisdiction to make the order.

Affidavit or other evidence to be used in support of this application

☐ Affidavit of _____ (*your name*)

☐ Other: _____

NOTICE

If you wish to oppose this application, you or your lawyer must prepare an affidavit in response, serve a copy of your affidavit at the address for service given at the end of this document, and file it in the Court office, with proof of service, at least 7 days before the date set for hearing the application. You or your lawyer must also come to Court for the hearing of the application on the date set.

If you do not come to the hearing, an order confirming the provisional order may be made in your absence and enforced against you.

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(*your signature*)

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____

(*set out the street address*)

Telephone number: _____

Fax number (*if any*): _____

E-mail address (*if any*): _____

or

If the party is self-represented

Name of party: _____

Address for service: _____

(*set out the street address*)

Telephone number: _____

Fax number (*if any*): _____

E-mail address (*if any*): _____